



A COMMUNITY OF CHOICE

Planning and Development Department
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August 23, 2017

City Council
City of Cheyenne
Cheyenne, WY 82001

In re: Amendments to Carpet One Annexation and Zone Change (Agenda Items #10 & #11)

The attached ordinances are submitted to correct a minor error in the entitlements and legal descriptions of the applications shown above, specifically, that "Sunny Side" should be shown as "Sunnyside". They have been reviewed by the City Attorney's Office.

The annexation and zone change maps provided by the applicant also have this error and staff is recommending that correcting these maps be a condition of approval. The applicant has been made aware of this and has expressed that they have no issues with the condition.

Regards,

Eric Hammer
Planner

XC: File
Mayor Marion Orr
City Attorney's Office
City Clerk's Office

alen

Date: 7/31/17

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING ALL OF LOT 1, BLOCK 1, TAXIDERMY ADDITION AND THE NORTH 305.23' EXCEPT NORTH 150' OF TRACT 14, SUNNYSIDE ADDITION AND THE NORTH 50' OF THE SOUTH 300' OF THE WEST 91' OF TRACT 14, SUNNYSIDE ADDITION; SITUATED IN THE SW $\frac{1}{4}$ SW $\frac{1}{4}$ OF SECTION 27, T.14N., R.66W. OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED NORTHEAST OF THE INTERSECTION OF RIDGE ROAD AND EAST PERSHING BOULEVARD)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Commercial Flooring Inc., owner at the time of submittal of all of Lot 1, Block 1, Taxidermy Addition and the north 305.23' except north 150' of Tract 14, Sunnyside Addition and the north 50' of the south 300' of the west 91' of Tract 14, Sunnyside Addition; situated in the SW $\frac{1}{4}$ SW $\frac{1}{4}$ of Section 27, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MU – Mixed-Use – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published: _____